

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

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INUWA BRAIMAH and IBRHIMA DUKURAY

Plaintiff

- against -

**THE CITY OF NEW YORK,
DEPUTY INSPECTOR JOSEPH G. TOMPKINS,
POLICE OFFICER LAMIK FITZGERALD
(shield# 25117), POLICE OFFICER SCOTT
PARIONA (shield# 23554), POLICE OFFICER
DARWIN DUME (shield# 9389), and NYPD
POLICE OFFICERS JOHN DOES NUMBER
ONE THROUGH TEN,**

Defendants.
-----X

Index No. _____
Purchased _____
Plaintiff designates The Bronx
County as the place of trial

The basis of the venue is
where the tort arose

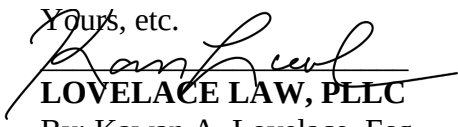
SUMMONS

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Queens, New York
April 2, 2024

Yours, etc.


LOVELACE LAW, PLLC

By: Kawan A. Lovelace, Esq.
Attorney for Plaintiff
72-11 Austin Street, #303
Forest Hills, New York 11375
(718) 662-8265

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

=====X

INUWA BRAIMAH and IBRHIMA DUKURAY
Plaintiff

**Plaintiff,
Index No.
Verified Complaint**

- against -

**THE CITY OF NEW YORK,
DEPUTY INSPECTOR JOSEPH G. TOMPKINS,
POLICE OFFICER LAMIK FITZGERALD
(shield# 25117), POLICE OFFICER SCOTT
PARIONA (shield# 23554), POLICE OFFICER
DARWIN DUME (shield# 9389), and NYPD
POLICE OFFICERS JOHN DOES NUMBER
ONE THROUGH TEN,**

Defendants.

=====X

Plaintiff INUWA BRAIMAH and IBRHIMA DUKURAY, by their attorneys LOVELACE LAW, PLLC, by KAWAN A. LOVELACE, ESQ., principal, complaining of the Defendant(s), respectfully shows to this Court and alleges the following upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of Defendants' violation of Plaintiffs' rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law, and the laws of the State of New York. On January 5, 2023, at approximately 4:23 p.m., Plaintiffs Inuwa Braimah and Ibrhima Dukuray, while lawfully in the vicinity of Concord Avenue and East 144 Street, County of the Bronx, State of New York, were subject to an unlawful arrest, detention, and physical injuries resulting from the use of excessive force by Defendant Police Officers. Plaintiffs were deprived of their constitutional, common law, and statutory rights when the individual Defendants unlawfully stopped, detained, assaulted, passed along false accusations to prosecuting attorneys, and engaged in the malicious prosecution of Plaintiffs in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

2. Plaintiff INUWA BRAIMAH is a resident of Bronx County in the City and State of New York.

3. Plaintiff IBRHIMA DUKURAY is a resident of Bronx County in the City and State of New York.
4. Defendant City of New York ("CITY") is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The Defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
5. At all times hereinafter mentioned, THE NEW YORK CITY POLICE DEPARTMENT ("POLICE"), was and is an agency of Defendant CITY.
6. At all times hereinafter mentioned, Defendant DEPUTY INSPECTOR JOSEPH G. TOMPKINS ("D.I. TOMPKINS"), was and is, a police officer employed by Defendants.
7. At all times hereinafter mentioned, Defendant POLICE OFFICER LAMIK FITZGERALD ("P.O. FITZGERALD"), Shield No. 25117, was and is, a police officer employed by Defendants.
8. At all times hereinafter mentioned, Defendant POLICE OFFICER SCOTT PARIONA ("P.O. PARIONA"), Shield No. 23554, was and is, a police officer employed by Defendants.
9. At all times hereinafter mentioned, Defendant POLICE OFFICER DARWIN DUME ("P.O. DUME"), Shield No. 9389, was and is, a police officer employed by Defendants.
10. New York City Police Officers John Does Numbered One Through Ten are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
11. Police Officers John Does Numbered One Through Ten are being sued in their individual and official capacities.
12. At all times relevant herein, the individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City

Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

STATEMENT OF FACTS

13. On January 5, 2023, at approximately 4:23 p.m., Plaintiffs were in the vicinity of Concord Avenue, between East 144th and 143rd Streets, County of the Bronx, State of New York, when the Defendant Police Officers, including P.O. FITZGERALD, unlawfully detained, arrested, and used excessive force against Plaintiffs without legal justification.
14. While at said location, Plaintiffs were standing on the sidewalk near the parked vehicle of Plaintiff Braimah, and having a discussion with another friend, Michael Akins.
15. Defendant Officers pulled up in their marked police vehicle and stopped next to a parked car which was parked directly across the street from where Plaintiffs were standing.
16. P.O. FITZGERALD, while sitting in the front passenger seat of the marked police vehicle, extended his hand outside of the window and took a small object from an individual who was sitting in the driver's seat of the parked vehicle.
17. Shortly thereafter, the marked police vehicle backed up, allowing space for the parked vehicle to leave from its parking spot, and the individual in the parked vehicle drove off and left the scene.
18. Then, P.O. PARIONA lowered the front driver's side window and stated to Plaintiff's, what the fuck are ya'll looking at.
19. Plaintiffs responded back asking P.O. PARIONA what he was looking at, upon which the Defendant Officers parked, exited the police vehicle, approached Plaintiffs and told them that they had to leave the block, and pushed Plaintiff Braimah.
20. Plaintiff Braimah tells P.O. PARIONA that he is recording them.
21. Plaintiff Braimah asked Defendant Officers why they had to leave since they didn't do anything wrong, and then requested that Defendant Officers turn on their body worn cameras.
22. As Plaintiffs and Michael Akins began to leave the area, in compliance with Defendant Officer's orders, they continued to ask Defendant Officers why they were making Plaintiffs leave since they hadn't done anything wrong.

23. P.O. PARIONA then says to Plaintiffs, are ya'll pedophiles, this is a school and ya'll don't have any kids.
24. Upon reaching the end of the block, P.O. FITZGERALD and P.O. PARIONA grabbed Michael Akins, pushed him against a car, and struck Mr. Akins numerous times about his head, face, and body without cause.
25. Plaintiffs Braimah and Dukuray pleaded with P.O. FITZGERALD and P.O. PARIONA to stop hitting Mr. Akins, but the Defendant Officers did not stop.
26. Fearing for Michael Akins life, Plaintiff Dukuray climbed on the trunk of the car where Defendant Officers had Mr. Akins pinned, and kicked P.O. PARIONA once in the head before he jumped off the car and ran away into a nearby park.
27. Then, Plaintiff Braimah struck P.O. PARIONA in the back with his hand once and ran off into the park.
28. Another Defendant Officer chased Plaintiff Dukuray and Plaintiff Braimah into the park.
29. P.O. PARIONA and P.O. FITZGERALD continued to strike Mr. Akins about his head and body before slamming Mr. Akins to the ground and handcuffing him.
30. While running through said park, Plaintiff Dukuray encountered numerous Police Officers arriving in vehicles and on foot.
31. Upon seeing the Police Officers, Plaintiff Dukuray stopped running and put his hands up in the air.
32. Defendant Officers tackled Plaintiff Dukuray and struck him with closed fist multiple times about his head, torso, and buttocks.
33. Plaintiff Dukuray says to Defendant Officers that he is not resisting and asked why they were hitting him.
34. Defendant Officers put handcuffs on Plaintiff Dukuray and placed him under arrest.
35. Plaintiff Braimah runs out of the park and encountered a Defendant Officer who had his gun pointed at Plaintiff Braimah.
36. The Officer tells Plaintiff that he will shoot Plaintiff if he does not stop running, so Plaintiff Braimah complied, stopped running, and raised his hands above his head.
37. Defendant Officer grabbed Plaintiff, threw Plaintiff to the ground, and handcuffed Plaintiff, thus placing Plaintiff under arrest.

38. Plaintiffs Braimah, Plaintiff Dukuray, and Michael Akins were then taken to the 40th Police Precinct in separate vehicles.
39. Upon arrival at the precinct, Plaintiff Braimah was placed in front of the main desk in the precinct lobby while Defendant Police Officers removed items from his pockets and further searched him.
40. Plaintiff Dukuray, while still in handcuffs, asked Defendant Officers numerous times to loosen the handcuffs because they were too tight and hurt his wrists. Plaintiff Dukuray also asked for water because he was feeling faint.
41. Defendant Officers tell Plaintiff Braimah that they will remove his handcuffs and give him water once they finish searching him and go to the holding cell area.
42. A police officer says to another officer, in reference to Defendant Braimah, that he's the one that was squaring up and he kept saying that he has a lawsuit.
43. In response, the other police officer says what lawsuit; somebody is gonna teach you something; somebody has to.
44. Then, Plaintiff Braimah was taken to the holding cell area where he was thrown to the ground by numerous Defendant Officers, struck about his head and body with closed fists, as well as kicked about his head and body by multiple Defendant Officers.
45. A Defendant Officer says to Plaintiff Braimah, fucking attack a cop right.
46. A Defendant Officer then pulled the hood of Plaintiff Braimah's hooded sweatshirt over Plaintiff Braimah's head and pulled the drawstring so that the hood completely closed over Plaintiff Braimah's face.
47. Plaintiff Braimah tells Defendant Officers that he cannot breathe, after which a Defendant Officer used a knife to cut the drawstring to free Plaintiff Braimah's face and head.
48. Defendant Police Officers finally placed Plaintiff Braimah in the holding cells with Plaintiff Dukuray and Michael Akins.
49. At no time prior to when P.O. PARIONA and P.O. FITZGERALD approached Plaintiffs and Michael Akins, had Plaintiffs or Michael Akins commit a crime, or give the Defendants any reason to approach them.
50. At no time relevant herein did Plaintiffs commit a crime or violate the law in any way, until Defendants began to physically assault Michael Akins without cause, and in defense of Michael Akins Plaintiffs struck P.O. PARIONA in an attempt to stop

the unlawful assault being committed by Defendant Police Officers.

51. At no point did Defendant Officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiffs or Michael Akins.
52. Subsequent to arrest, at no point did Plaintiffs fail to comply with any of the Defendant Officer's commands or further resist arrest.
53. Nevertheless, Plaintiffs were unlawfully assaulted during their arrest and Plaintiff Braimah was further assaulted by numerous Defendant Officers while inside the 40th Precinct, deprived of water, shackled by his legs, humiliated, degraded, threatened, and deprived of necessary medical treatment.
54. Plaintiffs were then transported from the 40th Precinct to Central Booking.
55. While Plaintiffs were in custody, the Defendant Police Officers provided the Bronx County District Attorney's Office with false, misleading and/or incomplete information regarding the facts surrounding Plaintiffs' arrest and their commission of a crime.
56. Specifically, the Defendant Police Officers falsely stated to the Bronx County District Attorney's Office that Plaintiffs were acting disorderly and obstructed governmental administration.
57. Plaintiffs appeared before a judge for arraignment and were released on January 7, 2023.
58. Some of the police officer Defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably assaulting, battering, and using excessive force against Plaintiffs.
59. The unlawful assault, battery, and use of excessive force by the individually named Defendants caused Plaintiffs to sustain physical, psychological, and emotional trauma.

PROCEDURAL POSTURE

60. On February 7, 2023, Plaintiffs served a Notice of Claim in writing sworn to on Plaintiffs' behalf upon the Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

61. More than thirty days have elapsed since service of said Notice of Claim, prior to the commencement of this action, and Defendant CITY has failed to pay or adjust this claim.
62. This action has been commenced within one year and ninety days after the cause of action of Plaintiffs accrued.
63. In accordance with New York State law and General Municipal Law Section 50, Plaintiffs testified at a hearing held pursuant to General Municipal Law Section 50-H on August 31, 2023.
64. The Plaintiffs have duly complied with all conditions precedent to the commencement of this action.
65. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the Defendant, and/or Defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.
66. Plaintiffs have sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

FIRST CAUSE OF ACTION

Negligence

67. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.
68. Defendants owed a duty of care to Plaintiffs.
69. Defendant Officers breached that duty of care by deliberately restraining and injuring Plaintiffs.
70. As a direct and proximate result of such acts, Defendant officers deprived Plaintiffs of their rights under the laws of the State of New York.
71. All of the foregoing occurred without any fault or provocation by Plaintiffs.
72. Defendant Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
73. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

74. As a result of the aforementioned conduct of Defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION
Unlawful Stop, Question, and Search

75. The Plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.
76. The illegal approach, pursuit, stop and grab employed by Defendants herein terminated Plaintiffs' freedom of movement through means intentionally applied.
77. The conduct of Defendants in approaching, stopping, and grabbing Plaintiffs was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.
78. As a direct and proximate result of such acts, Defendants deprived Plaintiffs of their rights under the laws of the State of New York.
79. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
80. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION
Violation of Fourth and Fourteenth Amendment Rights:
Unlawful Seizure and Deprivation of Liberty

81. The Plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.
82. The individually named police officer Defendants, while acting in concert and within the scope of their authority, caused Plaintiffs to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiffs' right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.
83. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional and psychological injuries.

FOURTH CAUSE OF ACTION**False Imprisonment**

84. The Plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.
85. The acts and conduct of the Defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiffs and, in fact, confined Plaintiffs, and Plaintiffs were conscious of the confinement. In addition, Plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.
86. As a direct and proximate result of such acts, Defendants deprived Plaintiffs of their rights under the laws of the State of New York and the United States Constitution.
87. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
88. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
89. As a result of the aforementioned conduct of Defendants, Plaintiffs sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FIFTH CAUSE OF ACTION**Negligent Infliction of Emotional Distress**

90. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.
91. By the actions described herein, Defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiffs. The acts and conduct of the Defendants were the direct and proximate cause of injury and damage to Plaintiffs and violated Plaintiffs' statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
92. The acts and conduct of the Defendants were the direct and proximate cause of injury and damage to Plaintiffs and violated Plaintiffs' statutory and common law rights as guaranteed to Plaintiffs by the laws and Constitution of the State of New York.

93. As a direct and proximate result of such acts, Defendants deprived Plaintiffs of their rights under the laws of the State of New York.
94. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
95. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
96. As a result of the aforementioned conduct of Defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

97. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.
98. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise Defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.
99. As a result of the aforementioned conduct of Defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Failure to Intervene

100. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.
101. The Defendants that did not physically touch Plaintiffs, but were present when other officers violated Plaintiffs' Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiffs, whose Constitutional rights were being violated in their presence by other officers.
102. Defendants failed to intervene to prevent the unlawful conduct described herein.
103. As a result of the foregoing, Plaintiffs' liberties were restricted for an extended period of time, they were put in fear of their safety, their property was taken, damaged, and never returned, and they were humiliated and subject to other physical constraints.

104. As a direct and proximate result of such acts, Defendants deprived Plaintiffs of their rights under the laws of the State of New York.
105. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
106. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
107. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Violation of Fourth And Fourteenth Amendment Rights: Denial of Right to Fair Trial/Due Process

108. The Plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.
109. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.
110. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.
111. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.
112. Defendants testified falsely to a Bronx grand jury regarding the facts and circumstances of the arrest resulting in the return of a true bill and Plaintiffs being indicted.
113. In withholding/creating false evidence against Plaintiffs, and in providing/withholding information with respect thereto, Defendants violated Plaintiffs' constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.
114. As a result of the foregoing, Plaintiffs sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his Constitutional rights.

115. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
116. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
117. As a result of the aforementioned conduct of Defendants, Plaintiffs sustained injuries including, but not limited to economic, emotional, and psychological injuries.

NINTH CAUSE OF ACTION
Malicious Prosecution

118. The Plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.
119. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.
120. Defendants commenced and continue a criminal proceeding against Plaintiffs.
121. There was actual malice and an absence of probable cause for the criminal proceedings against Plaintiffs and for each of the charges for which they were prosecuted.
122. The prosecution and criminal proceedings are still ongoing and as a result Plaintiffs continue to suffer economic, emotional, and psychological injuries.

TENTH CAUSE OF ACTION
Violation of Plaintiff's Fourth And Fourteenth Amendment Rights:
Excessive Force

123. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.
124. The use of excessive force by Defendants by, amongst other things, tackling, and punching Plaintiffs about their heads and bodies while Plaintiffs were standing still with their hands up in the air to surrender to Defendants, placing handcuffs upon Plaintiff's wrists in an excessively and abusively tight manner multiple times for excessively long periods of time, by threatening Plaintiff Braimah that he needs to be taught a lesson and then subsequently throwing Plaintiff Braimah to the ground to kick and punch Plaintiff about his head and body numerous times while inside the precinct causing Plaintiff Braimah to scream in pain, depriving Plaintiff Braimah of air to breathe by pulling the hood of his hooded sweatshirt over his face

and head, all while Plaintiff Braimah was not resisting, and at certain points handcuffed, and suffer other injuries, constituted objectively unreasonable physical seizures of Plaintiffs in violation of their rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

125. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

ELEVENTH CAUSE OF ACTION

Assault

126. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.
127. Defendants, their agents, servants, and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiffs in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiffs, including threatening to shoot Plaintiffs and to teach Plaintiff Braimah a lesson, that such acts caused apprehension of such contact in the Plaintiffs.
128. As a direct and proximate result of such acts, Defendants deprived Plaintiffs of their rights under the laws of the State of New York.
129. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
130. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
131. As a result of the aforementioned conduct of Defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

TWELFTH CAUSE OF ACTION

Battery

132. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

133. Defendants, their agents, servants, and employees, acting within the scope of their employment, intentionally, willfully, and maliciously battered Plaintiffs, when they, in a hostile and/or offensive manner tackled Plaintiff Dukuray and slammed him onto the hood of a police car, punched Plaintiff Dukuray numerous times about his body despite the fact that he was not resisting arrest and had clearly given himself up, by throwing Plaintiff Braimah to the ground to kick and punch Plaintiff about his head and body numerous times while inside of the precinct causing Plaintiff Braimah to scream out in pain, depriving Plaintiff Braimah of air to breathe by pulling the hood of his hooded sweatshirt over his face and head even while he was telling Defendants that he couldn't breathe, all while Plaintiff Braimah was not resisting Defendants, and handcuffing Plaintiffs in an excessively tight manner causing bruising, pain, and damage to Plaintiffs' wrists, thereby brutally effecting arrests of Plaintiffs without their consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiffs, and caused such battery.
134. As a direct and proximate result of such acts, Defendants deprived Plaintiffs of their rights under the laws of the State of New York.
135. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
136. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
137. As a result of the aforementioned conduct of Defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

THIRTEENTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

138. Plaintiffs repeat, reiterate, and, re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
139. Such conduct breached the protections guaranteed to Plaintiffs by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:
- i. freedom from unreasonable search and seizure of her person and property;
 - ii. freedom from arrest without probable cause;
 - iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention Plaintiff was aware and did not consent;
 - iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual Defendants; and

v. freedom from deprivation of liberty without due process of law.

140. As a direct and proximate result of Defendants' deprivations of Plaintiffs' rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiffs suffered physical, economic, and emotional injuries, as well as a deprivation of liberty.

141. As a result of the above tortious conduct, Plaintiffs were caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

142. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

143. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

144. Plaintiffs hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs Inuwa Braimah and Ibrhima Dukuray demand judgment against the Defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiffs recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: Queens, New York
April 2, 2024

Yours, etc.,

LOVELACE LAW, PLLC


By: Kawan A. Lovelace, Esq.

Attorney for Plaintiff

72-11 Austin Street, #303

Forest Hills, NY 11375

(718) 662-8265

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX****Index No.**

Purchased_____

**-----X
INUWA BRAIMAH and IBRHIMA DUKURAY****VERIFICATION**

Plaintiff

-against-

**THE CITY OF NEW YORK,
DEPUTY INSPECTOR JOSEPH G. TOMPKINS,
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(shield# 25117), POLICE OFFICER SCOTT
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DARWIN DUME (shield# 9389), and NYPD
POLICE OFFICERS JOHN DOES NUMBER
ONE THROUGH TEN,**Defendants.
-----X

I, **KAWAN A. LOVELACE**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe to be true. The reason this verification is made by me and not the Plaintiffs is because Plaintiffs reside outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Queens, NY
April 2, 2024


KAWAN A. LOVELACE, ESQ.

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

Index No:

INUWA BRAIMAH and IBRHIMA DUKURAY

Plaintiff

-against-

**THE CITY OF NEW YORK, DEPUTY INSPECTOR JOSEPH G. TOMPKINS,
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SCOTT PARIONA (shield# 23554), POLICE OFFICER DARWIN DUME (shield#
9389), and NYPD POLICE OFFICERS JOHN DOES NUMBER ONE THROUGH
TEN,**

Defendants.

SUMMONS & COMPLAINT

**Law Office of Kawan A. Lovelace
Attorney for Plaintiff
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